Supplemental Comment on AgCeption Commercialization

Public version with names and nonpublic commercial details redacted

Agricultural equipment manufacturing and distribution inquiry
Docket FTC-2026-1585 | Supplement to the 29 October 2026 submission
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Public disclosure note

The commercial partner is identified here as Partner A. Its name, personnel, identifying program references and private exhibit images are withheld from this version. Other private counterparties are described by role. The confidential package supplies the identities and source references. These omissions do not guarantee that a reader familiar with earlier public material cannot infer an identity.

P01 I ask the FTC and USDA to examine whether access to agricultural equipment customers and licensing opportunities was conditioned on moving independently developed technology away from its developer and through an intermediary. This supplement supplies a focused sequence of commercial proposals and contemporaneous communications concerning L&A's AgCeption Grain-o-Scope / Corn-o-Scope technology.

P02 The new material strengthens the record supporting the reported manufacturer-interest and proposed asset-transfer events in our 29 October 2026 chronology. It supplements, rather than replaces, that chronology. Original entry numbers are retained; the confidential version uses new S-series identifiers for the additional evidence. Please associate both versions with our earlier submission.

P03 A commercialization partner reported an initial meeting about Deere working through that partner with the technology. On the same day, the partner proposed a separate entity to hold licensed technology, share sales revenue and contract development back to L&A. Two months later, the discussion expressly included purchase or an exclusive license, transfer into an LLC, and possible hiring of L&A personnel. An asset-purchase draft followed. These records make the identity, purpose and terms of the proposed intermediary concrete subjects for investigation.

P04 The communications directly establish what their authors said and proposed. The partner's account of a Deere meeting is not a direct communication from Deere or a completed Deere agreement. I ask the agencies to obtain the underlying records and test the explanations, including ordinary commercial, continuity-of-support and performance concerns.

The documented sequence

P05 July to September 2024

A prospective equipment distributor confirmed a visit, expressed interest in integrating Corn-o-Scope with existing and next-generation equipment, and sent a discussion draft addressing hardware supply, new-equipment and retrofit distribution, support, and annual software or model subscriptions per device. The draft was a proposed business model, not a signed distribution agreement. [E01]

P06 February to May 2025

The distributor introduced L&A to a European-based representative of a crop-science company and expressly identified Corn-o-Scope as L&A's product. A separate May email shows that L&A itself was considering a spin-off and introduced a prospective business leader. A separate entity was therefore also an option explored by L&A; its mere existence would not establish coercion. [E02-E03]

P07 22 July 2025

After I asked about Deere's interest in Corn-o-Scope, Partner A reported a favorable-sounding first meeting about working through it, while expressly stating that it had no feedback or serious direction yet. Partner A then proposed a new entity, an IP license to that entity, a sales revenue agreement, and a contract back to L&A for construction and some support. I initially welcomed the framework. [E04]

P08 22 September 2025

Partner A asked about purchasing or obtaining an exclusive license to AgCeption, moving it into an LLC, and continuing development and licensing. The exchange narrowed the interest principally to Grain-o-Scopes, contemplated revenue sharing and possible hiring of L&A staff, and raised continuity of access as a concern. I objected to a structure that would remove our team and control without adequate capital or guaranteed revenue. [E05]

P09 November 2025

The earlier chronology identifies a proposed asset-purchase agreement and my request to pause. The unsigned draft covers specified AgCeption assets, would replace earlier agreements, assign related IP and impose a five-year worldwide noncompete in the purchased technology. It leaves pre-existing liabilities with L&A. This is distinct from our L&Aser patent estate and from the later separation proposal. [Original #82 and exhibit E20]

What the record supports and what remains to be tested

P10 The supplied material supports a real commercialization effort: deployed research equipment, product integration discussions, recurring-license proposals, ongoing customer funding and support, and proposals to change control of the technology. It does not establish a completed fleet-wide manufacturer transaction, a quantified technology valuation, or a measured increase in farm yields.

P11 The September and October 2025 support messages concern Ear-Height, distinct from Grain-o-Scope/Corn-o-Scope kernel measurement. In my 6 November 2026 clarification, I attribute much of the Ear-Height difficulty to Partner A's inherited architecture and state that L&A recommended changes that were not adopted. L&A ultimately resolved the Ear-Height issues and fulfilled that contractual obligation. Separately, the Grain-o-Scopes had performed strongly for roughly three years. The dated messages record interim status; the exact date of eventual Ear-Height resolution is unspecified. [E07; confidential E17; C01]

P12 The partner gave a continuity and long-term development rationale for seeking control. In a later exchange, a representative denied wanting to take advantage of L&A, and I clarified that I did not think Partner A wanted to take advantage of us. The acquisition price alone does not prove interference or unfair value; full terms, the available alternatives and the actual reasons for each decision matter. [E05, E07; confidential E08]

P13 The September 2026 demand and later settlement draft described in the original chronology concern disputed delivery, accounting, repayment and separation. The settlement draft provides for removal of L&A-owned technology, subject to its stated exceptions; it is not the same transaction as the 2025 acquisition draft. Neither supplied draft establishes a completed transfer. [Original #104-105, #128, #132]

P14 L&A intended commercial returns from AgCeption to support continued independent development, including L&Aser. My concern is that third-party pressure may have restricted those returns or conditioned customer access on transferring control. That is an investigative hypothesis. The supplied messages do not establish that Deere directed the partner, threatened other firms, or acted to suppress L&Aser financing.

P15 I request examination of barriers to market entry, independent technology licensing, commercial access and innovation. The agencies can assess whether the sequence reflects legitimate commercial decisions, contractual disputes, exclusionary conditions, or some combination. The record should be assessed as a whole, including evidence that does not support my interpretation.

Requested records and follow up

P16 Underlying manufacturer discussions

Obtain the invitations, meeting notes, follow-up messages and proposed terms underlying the reported July 2025 Deere meeting. Identify the participants, the technology discussed, the intended scale, and whether any participant conditioned access on ownership, exclusivity or an intermediary.

P17 Commercial structure and consideration

Compare the proposed licensing and revenue-sharing vehicle, the later purchase or exclusive-license proposal, and the asset-purchase draft. Determine who proposed the changes and why; what consideration, continuing revenue, staffing, support and liability arrangements were contemplated; and whether an independent L&A licensing route remained available.

P18 Reasons prospective customers did not proceed

Obtain relevant decision records from the equipment distributor and prospective customers, including any statements about L&A's IP, competing ownership claims, litigation risk, equipment integration, performance, or pressure from other companies. A stalled negotiation by itself is not evidence of a coordinated refusal to deal.

P19 Performance and downstream use

Compare statements of work, accepted deliveries, support logs, accounting, model versions, deployment records and customer analyses. Determine which measurements entered which research or recommendation systems and when. Quantified agronomic benefit would require a separate analysis of the data and the decisions actually made.

P20 Preservation and scope

The review covers five supplied Slack screen recordings, three email files, screenshots and photographs, and the July-September 2025 native public-channel export. The export adds L&A's internal customer-project channel and other L&A channels; a later recording adds visible shared customer-channel messages. Native DMs and a complete native shared-channel export remain unavailable. Unopened threads, attachment previews and huddle indicators do not supply their underlying contents. Original files are retained separately; selected nonprivileged excerpts are included confidentially. Complete relevant threads, edit history and underlying documents remain follow-up sources.

This submission requests examination. It does not represent that either agency has opened an investigation, accepted any allegation, or reached a finding.

Public source extracts

The following are selected transcribed excerpts. Bracketed substitutions remove names or identifying details. The confidential version preserves the identities, fuller context and recording offsets. Original messages contain informal grammar.

E04 22 July 2025 Representative of Partner A, 7:01 AM

> *We haven't gotten any feedback yet from them. They said they needed a few weeks for meetings internally. The first meeting sounded favorable for them to work thru us with this tech. We haven't gotten any serious direction from them as we have been out of the office on product launch meetings.*

This was a response to my question about Deere's interest in Corn-o-Scope. It records the representative's report; it is not a Deere-authored message.

E04 Same day Representative of Partner A, 8:05 AM

> *What if [Partner A] spun up a new entity and you licensed all the corn o scope IP to. Then we have a revenue agreement on sales. Then contract back to L&A for building them and some support. So the entity would technically house the tech but profits would be split back with you and would still contract for your employees for new development? I would have to run figures to make sure revenue generated would he able to pay the overhead but would that type of framework work?*

The message continues with a statement about the author's limited expertise in business structures. At 9:43 AM I said the framework was great across the board; this was an initial response to the proposal, not execution of a contract.

E05 22 September 2025 Representative of Partner A, 5:37 AM

> *Good Morning Chris - wanted to follow-up on a convo we had a few months ago. Do you have any interest in [Partner A] purchasing or getting an exclusive license to AgCeption and transferring it into an LLC and then us continuing to develop and license the technology?*

Later messages describe intended continued use and a desire to preserve access, discuss possible revenue sharing and staffing, and ask about a lump-sum purchase. My responses raise the implications for control, staffing and capital. Fuller context is supplied confidentially.

Supporting record index

E01 distributor correspondence and proposal screenshots; E02 product referral email; E03 L&A spin-off correspondence; E04-E05 selected partner messages; E06 research-presentation attribution and related images, withheld; E07 technical and commercial countercontext; E08 brokerage terms, withheld. Existing chronology and exhibit identifiers refer to the 29 October submission. The confidential package provides source filenames, hashes and precise recording references.

Follow-up call and witness account

The follow-up account and supporting call-history information were supplied on 5 November 2026. The confidential package preserves names, recalled figures, wording and source references.

P21 Following the November 2025 purchase draft and my request to pause, I recall speaking directly with a senior executive of Partner A about declining the proposal. I explained my objections to the terms and the inadequacy of the proceeds for the Australian restart I had discussed. I recall the executive thanking me for calling directly, understanding my position, and referring to a possible sale to Deere using a specific numerical figure. My recollection supplies the spoken words and my impression of his response; the phone screenshot does not record the conversation. [S16; E09]

P22 The supplied phone screenshot displays a grouped call-history result associated with that executive, a count indicator of two, and the date November 25, 2025. It does not show individual times, call direction, duration, answered status or the date of each constituent call. I identify the relevant conversation with that date. The quoted transaction reference in the confidential version is not presented as an actual Deere offer, an agreed price or an independent valuation. [E09]

P23 At an industry event in May 2026, I recall another representative saying that the executive was no longer with Partner A and that the company was going another direction. I do not have a confirmed departure date or reason. The event records corroborate the opportunity for contact, not the words of this particular conversation. I ask the agencies to determine the executive's knowledge of the commercial discussions and whether any change in role was relevant. I also recall that representative denying anger toward L&A and repeatedly expressing urgency to complete the deal. Those recalled words and my impression of his tone do not establish the reason for the urgency. The present materials do not establish a dismissal or its cause. [S17, S29; E10; confidential N28]

P24 The specific follow-up is to identify what transaction the recalled Deere remark concerned, the source of any information behind it, and whether it reflected a proposal, speculation or negotiating rhetoric. The exact figure and private participants are supplied confidentially. This account adds an identifiable witness and question to the documented sequence; it does not supply the missing manufacturer communications.

Additional earlier-contact and Australian witness leads are recorded separately in the confidential package with their source limits. They are not used here to establish a coordinated monitoring campaign or a personal vendetta.

Personnel provisions and native channel records

Native channel records and the personnel provision were supplied on 5 November 2026. Private participants and commercial terms remain withheld from this public version.

P25 The unsigned November 2025 purchase draft contains a specific personnel provision. After a mutual one-year restriction on soliciting, recruiting or hiring the other party's employees, it expressly allows Partner A to contract with a named L&A technical team member for up to six months to assist the transition of the purchased assets. This is evidence of proposed direct access to a particular team member. It does not establish that the person accepted a contract, permanently changed employers, or was obligated to do so. [Confidential E12; original exhibit E20, section 9]

P26 The new native channel records document that team member's installation, calibration and harvest troubleshooting work. They also record L&A's funding strain, technical problems and my contemporaneous description of the proposed intermediary arrangement. The project channel contains L&A-side speakers and refers to a separate shared customer channel. These records therefore establish what L&A participants wrote; they do not turn an internal report into a customer admission. My earlier willingness to explore a separate entity, customer ownership or transition support is retained. [Confidential E13]

P27 I ask the agencies to determine whether the proposed transaction would have moved both the technology and essential engineering capacity away from L&A, on what terms, and whether any prospective customer made access contingent on that structure. Relevant records include the personnel-clause drafting history, recruitment or contracting communications, proposed compensation and support arrangements, and the manufacturer discussions. The stated rationale of continuity and the engineer's own choices should be evaluated alongside my concern about the effect on L&A's ability to remain an independent developer.

The personnel clause was already included within the original exhibit E20. This supplement gives it a specific narrative and evidence cross-reference; it is not described as a newly created document. The separate founder account about travel, compensation and the timing of a later social post is set out confidentially with its source limits.

Shared customer-channel evidence

Selected visible messages from the shared customer channel provide direct operational correspondence. The confidential version supplies participants, quotations and recording offsets.

P28 The shared-channel record adds direct customer acknowledgments and requests concerning kernel measurement. In September 2024 a customer representative thanks L&A for labeling work and a model improvement. In August 2025 that representative approves five scopes for an additional research workflow and requests kernel-size collection even when no scale is used. The record also shows L&A authorizing repeated onsite engineering support. Separate installation and maintenance records retain their own component-specific context. The September-October Ear-Height issues were distinct from Grain-o-Scope/Corn-o-Scope faults; my later clarification records eventual Ear-Height fulfillment and roughly three years of strong Grain-o-Scope performance. These messages support customer demand and support activity; they do not establish a completed manufacturer license, a complete deployment inventory or data lineage into a particular recommendation platform. [Confidential E17; P11; C01]

This addition bears on the practical value and continuity of the technology. The central question remains whether access to prospective agricultural-equipment customers and licensing opportunities was conditioned on separating L&A's AgCeption technology from L&A and routing it through an intermediary. The underlying manufacturer discussions remain necessary to answer that question.

Earlier public account and witness specificity

P29 Original chronology entries #63 and #81 record the reported manufacturer interest and later warning. I identify the same senior executive of Partner A as the speaker of both the remark that I had hurt my chances with Deere and the warning that Deere would steal L&A's technology. My 6 November 2026 clarification resolves that attribution; the confidential counterpart supplies his name. I ask the agencies to establish his source of knowledge and obtain the underlying manufacturer communications. My later public account places these remarks under its November 12, 2025 heading; its headings do not independently authenticate each exchange's time. The separately identified November 25 follow-up call remains distinct. [Confidential E19; C02]

Clarifications supplied 6 November 2026

C01 records my clarification concerning Ear-Height architecture, eventual fulfillment and separate Grain-o-Scope performance. C02 records my identification of the same executive as the speaker of both November 12 remarks. These clarify the account around the preserved original source records.